

of Civil Procedure section 415.30. Plaintiff presents no evidence of any efforts to personally serve at one of the Sacramento addresses.

Plaintiff states that the individual defendant Adrian Watson has refused to accept service on behalf of Vector. However, Vector's Statement of Information states that defendant Watson is Vector's CEO, Secretary, CFO, and President. All of these designations are listed in Code of Civil Procedure section 416.10(b) as individuals who may be served to effect service on a corporation.

Moreover, a corporate defendant may be served on the Secretary of State with a court order so approving. (Corp. Code, § 1702.) Plaintiff does not explain how the alternative service requested is more likely to provide actual notice than service on the Secretary of State.

Based on the foregoing, plaintiff has shown insufficient evidence of diligence to justify an order authorizing alternative service, nor has plaintiff shown why service on the Secretary of State would be less likely to provide actual notice to Vector than by way of the requested alternative service. The motion is denied.

16. S-CV-0057432 Galvez, Peter v. Elias, Shelby

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Set Aside Entry of Default

Defendant Capitol City Real Estate, Inc. ("Capitol City") moves to set aside the May 18, 2026 entry of default against it pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

Preliminarily, plaintiff's opposition is untimely filed without explanation. Nonetheless, the court exercises its discretion to consider all briefing submitted in this matter.

The court may "upon any terms as may be just" set aside default due to the moving party's "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) A motion to set aside default must be made "within a reasonable time, in no case exceeding six months" from the entry of default. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence and must bring the motion within 180 days. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant's motion is timely brought within approximately five weeks of entry of default. As to grounds for relief, defense counsel declares their firm was retained once defendant Shelby Elias (not a party to this motion) was served on April 17, 2026. The firm reviewed the court's online docket and saw no indication plaintiff had sought entry of default as to defendant Capitol City and prepared an answer for filing on May 26, 2026. The answer was rejected and immediately resubmitted for filing on May 28, 2026. Counsel noted the answer did not immediately appear on the docket so continued to

monitor the docket. On June 15, 2026, defense counsel saw the docket reflected an entry of default as against Capitol City that predated the May 28, 2026 answer and only received notice the answer had been rejected on June 24, 2026. Defense counsel reached out to plaintiff's counsel regarding setting aside default by stipulation, but plaintiff's counsel did not respond to the request. Defendant has shown sufficient "mistake, inadvertence, surprise, or excusable neglect" within the meaning of Code of Civil Procedure section 473(b).

Defense counsel also declares that Capitol City did not receive the service of summons and complaint, while also acknowledging that the proof of service appears to show facially valid service. As the motion is not brought pursuant to Code of Civil Procedure section 473.5, this information is extraneous to the instant motion. Plaintiff's evidence that plaintiff's counsel had reached out to defense counsel prior to the entry of default to enquire whether counsel was representing both defendants and that defense counsel did not respond shows that both counsel would be best served by timely responding to their correspondence; however, this evidence does not provide a basis on which to deny the motion.

Based on the foregoing, the motion is granted. Default of defendant Capitol City entered May 18, 2026 is hereby set aside. Defendant Capitol City shall file and serve its answer to the complaint by September 18, 2026.

17. S-CV-0058373 Arbaugh, Matthew v. Kennedy, Wayne

Order to Show Cause re Preliminary Injunction

Plaintiff seeks a preliminary injunction against defendants Wayne Kennedy, Lars Nielsen, and Eric Webb pursuant to Code of Civil Procedure sections 526 and 527.

Before reaching the merits of this motion, there are a number of procedural issues that must be addressed. Preliminarily, there is no evidence in the court's file the August 3, 2026 application for TRO and OSC re preliminary injunction were ever served on any party, nor is there any evidence in the court's file that the summons and complaint were served on any party. These issues are raised by defense counsel James A. Fillipin. While the issue of service of the moving papers may have been waived by all three named defendants filing substantive oppositions, plaintiff is nonetheless directed to promptly serve the summons, complaint, and moving papers on all defendants if he has not already done so and shall file proofs of service as appropriate.

Defendant Eric Webb submits his opposition to preliminary injunction and declaration in support thereof. However, his declaration is not signed under penalty of perjury pursuant to Code of Civil Procedure section 2015.5. Defendant is afforded the opportunity to re-file the declaration, ensuring it is signed and dated pursuant to Code of Civil Procedure section 2015.5.